



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUN 24 2003

DOT-E 13144
(FOURTH REVISION)

EXPIRATION DATE: March 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Baker Petrolite Corporation
Sugar Land, TX
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of DOT Specification 4BW240 welded steel cylinders for the transportation in commerce of Acrolein, stabilized. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.40(c)(1), (c)(2), 173.226(a) and 173.301(f)(6) in that welded DOT specification cylinders with pressure relief devices are not authorized for Division 6.1, Hazard Zone A materials except as specified herein.
5. BASIS: This exemption is based on the application of Baker Hughes, Baker Petrolite, dated December 12, 2002, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acrolein, stabilized	6.1	UN1092	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Packagings prescribed are approximately 3,500 DOT Specification 4BW240 welded steel cylinders owned by Baker Petrolite as of October 11, 2002. Each cylinder has a maximum service pressure of 240 psig and a maximum water capacity of approximately 53 gallons (holding 370 pounds of product).

(2) This exemption only authorizes the use of the 3,500 cylinders in Baker Petrolite's inventory as of October 11, 2002 and does not authorize additional inventory or new manufacture.

b. OPERATIONAL CONTROLS -

(1) Each cylinder and fitting assembly, including valves and devices as shipped must be leak tested after filling.

(2) Cylinder contents must be shipped under an inert nitrogen blanket at a maximum pressure of 12 psig.

(3) Cylinders suspected of contamination are not authorized for shipment under the terms of this exemption

(4) All cylinder outlets must be sealed by a threaded cap or solid plug or alternatively a locking ball valve compatible with acrolein must be installed and remain closed during transport.

(5) Cylinder discharge pressure must be limited to a maximum of 80 psig.

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(6) In addition to all applicable requirements of the HMR, the continued service of all cylinders is subject to the Baker Petrolite Corporation Mechanical Integrity Program on file with the OHMEA.

(7) The driver of the transport vehicle must be instructed that when the vehicle is in an accident involving spilled fuel or fire, the vehicle must be moved to a safe location unless moving the vehicle would directly endanger others.

(8) Transportation by motor vehicle is limited to private or contract carriage.

(9) When transported by cargo vessel, cylinders must be properly blocked and braced in a freight container under the exclusive use of Baker Petrolite Corporation.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package or its contents and is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. The cylinders described in this exemption are authorized only for normal transportation as an article of commerce i.e., the movement of hazardous materials packages from consignor to consignee.

d. In addition to the required specification marking, each cylinder must be plainly and durably marked "DOT-E 13144" as specified in § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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